



CITY COUNCIL MEETING

Council Chambers

Thursday, December 5, 2024

MINUTES

1. Call to Order and Roll Call:

Mayor Brockett called the meeting to order at 6:00 p.m.

Council Members present: Benjamin, Brockett, Folkerts, Marquis, Schuchard,
Speer, Wallach, Winer

Virtually present: Adams

Motion	Made By/Seconded	Vote
Motion to AMEND the agenda to: <u>ADD:</u> - Item 8B – Ranking proposed priority items for the Boulder County Regional Homelessness Working Group <u>REMOVE:</u> - Item 3B – Consideration of a motion to authorize the city manager to enter into 20-year license agreement with Public Service Company of Colorado, dba Xcel Energy, providing access to the Valmont Butte property in order to perform groundwater monitoring and remediation from the published agenda for 12/05/24 and reschedule it for the 12/19/24 consent agenda to allow council members more time to review the materials and ask questions.	Wallach / Benjamin	Carried 9:0

- A. **Declaration Honoring Emergency Response Connectors** presented by Mayor Brockett
- B. **International Day of Persons with Disabilities Declaration** presented by Council Member Winer
- C. Consideration of a **motion to approve the election returns from the 2024 Coordinated Special Municipal Election** held on November 5, 2024
 - 1. **Motion to convene as the General Canvassing and Election Board** for the City of Boulder Coordinated Special Municipal Election
 - 2. **Roll call** of the General Canvassing and Election Board
 - 3. **Administration of oath** and signing of same by Board members
 - 4. Consideration of a motion **nominating a member to chair the Board – Mayor Brockett nominated and elected.**
 - 5. **Submission of the following** to the Board found in Attachments:
 - A. Certificate of the Public Notice of the November 5, 2024 Special Election
 - B. Certificate of Approved Ballot
 - C. Official Summary of Votes
 - D. Boulder County Audit, Reconciliation Report and Certification
 - E. 2024C Boulder County Canvass Certification Sign-Off Compiled
 - 6. Consideration of a motion to **approve the election returns** and, if approved, signing of the Certificate of the General Canvassing and Election Board
 - 7. Motion to **adjourn from the General Canvassing and Election Board for the City of Boulder Coordinated Special Municipal Election and reconvene as the Boulder City Council**

Elesha Johnson, City Clerk, provided a presentation outlining the process guidelines and ballot measure results.

Council member Benjamin made a motion to approve the elections returns of the City of Boulder 2024 Coordinated Special Municipal Election held on November 5th, 2024. Council member Folkerts seconded the motion. The motion passed unanimously.

2. **Open Comment:**

(Public comments are a summary of actual testimony. Full testimony is available on the council web page at: <https://bouldercolorado.gov/city-council> > Watch Live or Archived Meetings.)

Open Comment **opened** at 6:37 p.m.

➤ **In-Person (Council Chambers):**

1. Barbara Steinmetz spoke on safety of Jewish constituency after council member uses language which fires up antisemitism
2. Bart Windrum spoke on urban-adjacent mountain backdrop human caused wildfire-ignition- mitigation
3. Aram Bingham spoke on ceasefire
4. Martha McPherson spoke on Gaza
5. Michele Rodriguez spoke on general
6. Dan Ronken spoke on comments of psilocybin therapy in Boulder
7. Bruce Shaffer spoke on antisemitism in Boulder, city council conduct
8. Robert Smoke spoke on global issues affecting Boulder
9. Sarah Napier spoke on education
10. Erik Castro spoke on Boulder psilocybin ordinance
11. Elise Mordos spoke on antisemitism
12. Dikla Leon spoke on last meetings antisemitic comments

➤ **Virtual**

13. Samantha Grigsby spoke on hate speech throughout Boulder
14. Aidan Reed spoke on Gaza and housing
15. ~~Dikla Leon spoke on last meetings antisemitic comments~~ ***moved to in-person***
16. Ella O'Neil spoke on improving the voice and sight program
17. Susan Alban spoke on fire prevention
18. ~~Laura Gonzalez spoke on impacts of settler colonialism~~ ***did not show***
19. Lauren Lambart Feldman spoke on decorum
20. Jonathan Wood spoke on standing against hate speech
21. Eve Bluestein spoke on peace, not hate in Boulder

Open Comment **closed** at 7:17 p.m.

Due to disruptions in Chambers, Mayor Brockett called for a recess at 7:32 p.m. and council reconvened at 7:41 p.m.

Due to continuous disruptions in Chambers, Mayor Brockett called for an additional recess at 7:46 p.m. and council reconvened at 8:00 p.m.

3. **Consent Agenda**

- A. Consideration of a motion to **authorize the City Manager to enter into a 10-year intergovernmental agreement between the City of Boulder and the Town of Nederland regarding phosphorus removal at Nederland's wastewater treatment facility at Barker Reservoir**
- B. **REMOVED:** ~~Consideration of a motion to authorize the city manager to enter into 20-year license agreement with Public Service Company of Colorado, dba Xcel Energy, providing access to the Valmont Butte property in order to perform groundwater monitoring and remediation~~
- C. Consideration of a motion to **approve an Intergovernmental Agreement (IGA) between the City of Boulder and the Mountain View Fire Protection District concerning the installation, use and management of a firefighting cistern on City of Boulder property**
- D. Consideration of a motion to **adopt Resolution 1357 of the City Council of the City of Boulder, Colorado (acting through its Stormwater and Flood Management Utility Enterprise), to participate in a future issuance of stormwater and flood management revenue bonds** and to reimburse itself up to \$20,000,000 for capital expenditures undertaken in advance of such financing in connection with the construction of the project; and setting forth related details
- E. **Introduction, first reading and consideration of a motion to order published by title only Ordinance 8665, amending Title 9, "Land Use Code," B.R.C. 1981, to implement Senate Bill 23-290 and locally permit natural medicine businesses, defined in the state bill as Natural Medicine Healing Centers, Cultivation, Production, and Testing Facilities, and setting forth related details**
- F. **Introduction, first reading, and consideration of a motion to order published by title only Ordinance 8676 amending Sections 3-7-2, "Imposition and Rate of Tax," 4-2-3, "Authority to Issue City Licenses," and 4-20-2, "Alcohol and Fermented Malt Beverage License and Application Fees," B.R.C. 1981, converting the license of lodging and entertainment facility to two separate licenses to comply with a change to state law; and setting forth related details**
- G. **Second reading and consideration of a motion to adopt Ordinance 8667 approving an Intergovernmental Agreement (IGA) concerning the management of the Coalton Trail on property co-owned by both the City of Boulder and Boulder County; and setting forth related details**
- H. **Second reading and consideration of a motion to amend and pass Ordinance 8670 amending Section 5-7-5, "City Manager Authority to Grant Permission to**

Consume Alcoholic Beverages on City-Owned Property”, B.R.C. 1981, to allow alcohol consumption at farm-to-table events on open space properties with a current farm crop and grazing lease in good standing; and setting forth related details

- I. **Second reading** and consideration of a motion to **adopt Ordinance 8672 amending the introduction and Chapters 8, 9 and 11 of the City of Boulder Design and Construction Standards (D.C.S.)**, originally adopted pursuant to Ordinance 5986, adding standards for narrow trenching related to installation of telecommunications infrastructure; and setting forth related details
- J. **Second reading** and consideration of a motion to **adopt Ordinance 8674 amending Section 4-20-23, “Water Permit Fees,” Chapter 11-1, “Water Utility,” and Chapter 11-2, Wastewater Utility,” B.R.C. 1981, updating water permit fees and clarifying enforcement provisions under the Backflow Prevention and Cross-Connection Control Program** to protect the drinking water system and public health; and setting forth related details
- K. **Second reading** and consideration of a **motion to adopt Ordinance 8675 approving supplemental appropriations to the 2024 Budget** and setting forth related details

Motion	Made By/Seconded	Vote
Motion to APPROVE the consent agenda items A and C thru K	Speer / Folkerts	Carried 9:0

4. **Call-Up Check-In**

- A. **Concept Plan Review and Comment Request for a proposal to redevelop the 55,246 square foot site at 777 Broadway** with a five-story, 55 foot tall, 82,500 square foot, 63 unit, multi-family residential building with ground floor podium parking and amenity space. The unit type mix would include studio, two-, three-, and five-bedroom units. The proposal includes a request for a 57% parking reduction. **Reviewed under case no. LUR2024-00037**

Brad Mueller, Planning and Development Services Director, and Chandler Van Schaack, Development Review Principal Planner, answered questions from Council.

A motion was made by Council Member Wallach to defer this item to the Design Advisory Board for their review. The motion was seconded by Council Member Marquis. The motion carried with a vote of 9:0.

NO ACTION

- B. **Landmark Alteration Certificate application to install solar panels at the front of the Higman House at 479 Arapahoe Ave., an individually landmarked property,**

pursuant to Section 9-11-18 of the Boulder Revised Code 1981 and under the procedures prescribed by chapter 1-3, “Quasi-Judicial Hearings,” B.R.C. 1981

NO ACTION

- C. **Landmark Alteration Certificate application to modify the garage door opening on a non-contributing accessory building at 527 Maxwell Ave.** in the Mapleton Hill Historic District, pursuant to Section 9-11-18 of the Boulder Revised Code 1981 and under the procedures prescribed by chapter 1-3, “Quasi-Judicial Hearings,” B.R.C. 1981

NO ACTION

5. **Public Hearings**

A. **Mayor Pro Tem Elections**

Council member Winer and Folkerts put their names forward for Mayor Pro Tem consideration via Hotline.

The public hearing **opened** at 8:13 p.m. and the following spoke:

➤ **Virtual:**

1. Lynn Segal

The public hearing **closed** at 8:13 p.m.

Council member Wallach nominated Council member Winer and provided remarks. Council member Winer accepted the nomination.

Mayor Pro Tem Speer nominated Council member Folkerts and provided remarks. Council member Folkerts accepted the nomination.

Council member Marquis made a motion to close the nominations and Council member Wallach seconded the motion. The motion was approved unanimously.

Council member Winer and Folkerts provided statements regarding their interests and qualifications in serving as Mayor Pro Tem.

Council member Winer withdrew her candidacy.

Council member Folkerts was elected to serve as Mayor Pro Tem for one year.

- B. Consideration of a motion to **approve amendments to the East Boulder Subcommunity Plan (EBSP), including the 55th and Arapahoe Station Area Plan**, to align East Boulder Connections Plan with the refined vision for East Boulder areas of change and additional supporting information

AND

Second reading and consideration of a motion to **adopt Ordinance 8669**, amending Title 9, “**Land Use Code**,” B.R.C. 1981, **by adopting form-based code standards for parts of East Boulder, moving the form-based code from Appendix M to Chapter 9-14, “Form-Based Code,”** B.R.C. 1981, revising rezoning and trip reduction standards for East Boulder; and setting forth related details

Kathleen King, Comprehensive Planning Planner Principal and Kristopher Johnson, Senior Comprehensive Planning Manager provided a presentation and answered questions from Council.

The public hearing **opened** at 9:37 p.m. and the following spoke:

➤ **In-Person:**

1. Marc Painter – *Pooling with #4 Erik & #7 Mark – 5 min*
2. Devin Edgley
3. John Tayer

➤ **Virtual:**

4. Lynn Segal
5. ~~Erik Stegemiller~~ – *Pooling with #1 Marc*
6. ~~John Tayer~~ *moved to in-person*
7. Salil Payappilly
8. ~~Mark Hamilton~~ - *Pooling with #1 Marc*

The public hearing **closed** at 9:56 p.m.

Hella Pannewig, Senior Counsel and Brad Mueller, Planning and Development Services Director, answered questions from Council.

Council Member Marquis made a motion to continue the item to the February 20th, 2025 meeting. Council member Winer seconded the motion. The motion was carried with a vote of 7:2.

6. **Matters from the City Manager**

7. **Matters from the City Attorney**

8. **Matters from the Mayor and Members of Council**

A. **Council Retreat Subcommittee Midterm Check-in Plan**

Council Members Speer and Winer provided Council with the outline and agenda for the February 27th Mid-Term Council Check-in.

- B. **Ranking proposed priority items** for the Boulder County Regional Homelessness Working Group

Mayor Pro Tem Folkerts presented Council with the suggested Workplan Priority Rankings.

9. **Discussion Items**

10. **Debrief**

11. **Adjournment**

There being no further business to come before Council at this time, by motion regularly adopted, the meeting was adjourned by Mayor Brockett at 10:43 p.m.

Approved this 6th day of February 2025.

APPROVED BY:


Aaron Brockett, Mayor

ATTEST:


Elesha Johnson, City Clerk